

26STCV08439 26STCV08439

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Case Number: 26STCV08439 Hearing Date: August 12, 2026 Dept: 224

Teitelbaum v. State Bar of California, et al.,

TENTATIVE RULING

The Court DENIES Plaintiffs' Motion for Relief from Discovery Stay pursuant to Code of Civil Procedure section 425.16(g).

Introduction

On March 16, 2026, Plaintiff filed the Complaint in this action.

On June 11, 2026, the Friedman Defendants filed a Special Motion to Strike pursuant to Code of Civil Procedure section 425.16, which automatically stayed discovery. The Grant Defendants filed a Special Motion to Strike as well.

On July 2, 2026, Plaintiff filed the instant Motion for Leave to Conduct Discovery While Special Motion(s) to Strike Are Pending, pursuant to Code of Civil Procedure section 425.16(g).

On July 8, 2026, the Grant Defendants filed an opposition.

On July 30, 2026, the Friedman Defendants filed an opposition.

On August 5, 2026 Plaintiff filed a Reply and response to objections.

Evidentiary Objections

Defendants' evidentiary objections 1-4 are SUSTAINED.

Legal Standard

Code Civ. Proc. § 425.16(g) provides, "All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision."

In order to establish "good cause" within the meaning of Code Civ. Proc. § 425.16(g), the plaintiff must show that "a defendant or a witness possesses evidence needed by the plaintiff to establish its probability of prevailing on a claim." (1-800 Contacts, Inc. v. Steinberg (2003) 107 Cal.App.4th 568, 572). Whether good cause has been shown is within the discretion of the Court. (See Lafayette Morehouse, Inc. v. Chronicle Publ'g Co. (1995) 37 Cal.App.4th 855, 868.)

"[T]he fact evidence necessary to establish the plaintiff's prima facie case is in the hands of the defendant or a third party goes a long way toward showing good cause for discovery. But it is not the only factor. The trial court should consider whether the information the plaintiff seeks to obtain through formal discovery proceedings is readily available from other sources or can be obtained through informal discovery. The court should also consider the plaintiff's need for discovery in the context of the issues raised in the SLAPP motion." (The Garment Workers Ctr. v. Superior Court (2004) 117 Cal.App.4th 1156, 1162.)

Discussion

Plaintiff, in pro per, seeks leave to propound requests for admission, special interrogatories, and document requests directed to 35 subject areas identified in paragraph 7 of his declaration, while the special motions to strike of the Grant Defendants and the Friedman Defendants are pending for hearing on October 29, 2026. Both sets of defendants oppose.

Here, Plaintiff has not shown good cause for the discovery. The proposed discovery is not "specified" within the meaning of section 425.16(g), is not tied to the issues actually raised in the Anti-SLAPP Motions, and is largely directed at testing Defendants' declarations.

Section 425.16(g) authorizes an order permitting "specified discovery," and the showing must be tailored to opposing the motion. (Britts, supra, 145 Cal.App.4th at p. 1125.) Plaintiff's declaration lists 35 numbered inquiries phrased as questions to an undifferentiated "you," alternating among "Grant or Rubin" and, in item 30, a group of eight individuals and firms. Plaintiff does not identify which defendant would receive which request, which of the three discovery devices he would use for which inquiry, or the text of any proposed request. The Court cannot order "specified discovery" on this record.

Good cause requires a showing that the specified discovery "is necessary for the plaintiff to oppose the motion and is tailored to that end" (Britts, supra, 145 Cal.App.4th at p. 1125), and that the plaintiff "explain what additional facts [he] expects to uncover" and why they are needed to carry his burden (Six4Three, supra, 109 Cal.App.5th at p. 659).

Here, Plaintiff's showing on this point consists of a single assertion: that all 35 items "relate specifically to plaintiff's contentions that moving parties concocted phony and false charges and had no basis whatsoever for their complaint." That describes the subject matter of the discovery – it does not explain its function. Plaintiff does not identify any ground asserted in either special motion to strike, does not explain what fact he expects the discovery to uncover, and does not connect any request to any element of his burden in opposing the motions. The papers do not address the threshold defenses at all.

It is Plaintiff's burden to make the requisite showing, and the Court will not supply the analysis he has not offered. Having failed to engage the grounds on which the motions rest, Plaintiff has not shown that any Defendant possesses evidence "needed by the plaintiff to establish its probability of prevailing on a claim." (1-800 Contacts, supra, 107 Cal.App.4th at p. 572.)

Conclusion

The Court DENIES Plaintiffs' Motion for Relief from Discovery Stay pursuant to Code of Civil Procedure section 425.16(g).

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion